



POLICE DEPARTMENT

October 23, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202004031 (Incident Date: May 25, 2020) regarding Police Officer Fatmir Gjonbalaj, Tax No. 952785 (DADS No. 2022-26387)

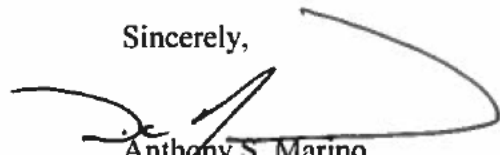
Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202004031, pertaining to Police Officer Fatmir Gjonbalaj. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Police Officer Gjonbalaj would be detrimental to the Police Department's disciplinary process.

In this matter, the CCRB seeks to serve Charges and Specifications against Officer Gjonbalaj for two counts of New York Penal Law § 110/120.00, Attempted Assault in the Third Degree. While there may be situations where an officer's use of force may be so egregious as to constitute a crime, this was not one of those situations. Here, Officer Gjonbalaj used hand strikes and deployed his conducted electrical weapon on an actively resisting suspect. The Police Commissioner finds that Officer Gjonbalaj's actions do not amount to criminal conduct.

Officer Gjonbalaj has no formal disciplinary history and no prior substantiated CCRB cases. Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to impose no disciplinary action for the allegations of Attempted Assault in the Third Degree.

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

COURTESY • PROFESSIONALISM • RESPECT

Website: <http://nyc.gov/nypd>



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
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October 30, 2024

The Honorable Thomas G. Donlon
Interim Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Police Officer Fatmir Gjonbalaj
Disciplinary Case No.: 2022-26387

Interim Commissioner Donlon:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated October 23, 2024, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) that you “determined that to pursue Charges and Specifications against Police Officer Gjonbalaj would be detrimental to the Police Department’s disciplinary process” and you intend to retain jurisdiction over this matter and “impose no disciplinary action for the allegations of Attempted Assault in the Third Degree.” Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

While CCRB cannot deny that you are permitted to retain jurisdiction in matters such as this one with members of service who have a lack of a disciplinary history, CCRB requests that you allow these Charges and Specifications to be served on Police Officer Gjonbalaj and permit CCRB to prosecute this member of service for this substantiated misconduct. Although we agree that “there may be situations where an officer’s use of force may be so egregious as to constitute a crime,” we disagree with your finding that “this was not one of those situations” and “Officer Gjonbalaj’s actions do not amount to criminal conduct.” The Charges and Specifications against Police Officer Gjonbalaj were filed using the crime exception and comport with the statutory requirements for Attempted Assault in the Third Degree.

It is undisputed that Police Officer Gjonbalaj used hand strikes and deployed his conducted electrical weapon on the complainant. The video footage makes it clear that the complainant refused to comply with Police Officer Gjonbalaj’s orders and resisted the officers’ attempts to remove his arms from the bench slats. As a result, Police Officer Gjonbalaj generally would have been justified in using some amount of physical force to extricate the complainant from the bench. However, the video footage also shows that Police Officer Ventura’s attempts at de-escalation were effective. The

complainant had voluntarily removed his right arm from the bench and stated his desire to go with Police Officer Ventura. Police Officer Gjonbalaj then stymied Police Officer Ventura's efforts and unnecessarily escalated the interaction by grabbing the complainant's arm away from Police Officer Ventura. Police Officer Gjonbalaj's decision to then put the complainant in a headlock and punch him in the face was unreasonable and excessive, especially as the complainant had not directed any physical force towards the officers and had not made any statements indicating that he would do so. Furthermore, while there was a crowd of agitated bystanders, there were also numerous additional officers arriving on scene, and they could have helped to extricate the complainant from the bench without resorting to impact strikes to the face.

In addition, Police Officer Gjonbalaj's usage of his conducted electrical weapon against the complainant was unreasonable and not justified under these circumstances. While the Patrol Guide would permit the use of a conducted electrical weapon against someone who is actively resisting, the video footage clearly shows that Police Officer Ventura had already successfully convinced the complainant to remove both of his arms from the bench and was holding him in a hug while speaking to him and therefore, the complainant could be considered as not actively resisting at the time. Police Officer Gjonbalaj again stymied Police Officer Ventura's attempts at de-escalation by suddenly firing his conducted electrical weapon, and he did so in such a rushed and reckless manner that Police Officer Ventura had not yet fully moved out of the field of fire.

After reviewing the evidence and circumstances of this incident, CCRB determined that Police Officer Gjonbalaj's actions were not within guidelines nor justified and this misconduct was substantiated by the Board. By not taking disciplinary action, Police Officer Gjonbalaj is not being held accountable for this substantiated misconduct.

CCRB disagrees with your intention of retaining jurisdiction and imposing no disciplinary action for the misconduct committed by Police Officer Gjonbalaj. CCRB requests that you allow our agency to pursue the prosecution of these Charges and Specifications against Police Officer Gjonbalaj.

Respectfully submitted,

Andre Applewhite

p.p., Andre Applewhite, Chief Prosecutor for
Jonathan Darche, Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

October 31, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

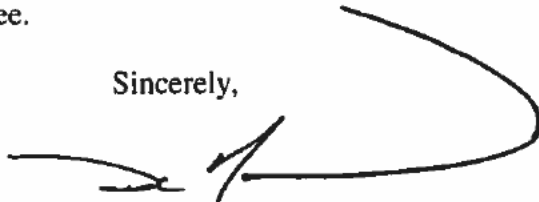
Re: CCRB Case No. 202004031 (Incident Date: May 25, 2020) regarding Police Officer Fatmir Gjonbalaj, Tax No. 952785 (DADS No. 2022-26387)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated October 30, 2024, concerning the Civilian Complaint Review Board ("CCRB") case involving Police Officer Fatmir Gjonbalaj. Nevertheless, he maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Gjonbalaj for the reasons expressed in my October 23, 2024 letter.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, directs that no disciplinary action be imposed for the allegations of Attempted Assault in the Third Degree.

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office